

10. Signature on forms: Any form, other than ¹[the record of order or direction], which is required by these rules to be signed by the Authority, may be signed under his direction and on his behalf by any officer subordinate to him, appointed by him, in writing for this purpose.

11. Exercise of powers: In exercising the powers of a Civil Court conferred by section 18 the Authority shall be guided in respect of procedure by relevant orders of the First Schedule of the Code of Civil Procedure, 1908, with such alterations as the Authority may find necessary, not affecting their substance, for adapting them to the matter before him, and save where they conflict with the express provision of the Act or these rules.

12. Appeals: ¹[(1) An appeal shall be preferred in duplicate in the form of a memorandum, one copy of which shall bear the prescribed court-fee, setting forth concisely the grounds of objection to the order dismissing either wholly or in part an application made under sub-section (2) of section 15 or a direction made under sub-section (3) or sub-section (4) of that section, as the case may be, and shall be accompanied by a certified copy of the said order or direction.]

(2) When an appeal is lodged a notice shall be issued to the respondent in Form G.

(3) The Court after hearing the parties and after such further inquiry, if any, as it may deem necessary, may confirm, vary, or set aside the ¹[order or direction] from which the appeal is preferred, and shall make an order accordingly.

²[**12A Orders or direction when to be made:** The Authority or the Court, as the case may be, after the case has been heard, shall make the order or direction either at once or, as soon thereafter as may be practicable, on some future day; and when the order or direction is to be made on some future day, it shall fix date for the purpose of which due notice shall be given to the parties or their pleaders.]

13. Inspection of documents: Any employed person, or any employer or his representative, or any person permitted under sub-section (2) of section 15 to apply for a direction, shall be entitled to inspect any application, memorandum of appeal, or any other document filed with the Authority or the Court, as the case may be, in a case to which he is a party and may obtain copies thereof on the payment of such fees as may be prescribed.

Form A

Form of Individual Application

[See sub-section (2) of section 15 of the Payment of Wages Act]

In the Court of the Authority appointed under the Payment of Wages Act, 1936 (4 of 1936) for area.

Application No. of

Between A.B.C. Applicant (through a legal practitioner/an official of which is a registered Trade Union.)

¹ Subs. By the Payment of Wages (Procedure) (Amendment) Rules, 1959.

² Ins. By the Payment of Wages (Procedure) (Amendment) Rules, 1970

And X.Y.Z.....opposite party:

The applicant states as follows:

1. A.B.C. is a person employed in the/on the factory/railway/industrial establishment entitled and resides at

The address of the applicant for the service of all notices and processes is:

.....

2. X.Y.Z., the opposite party, is the person responsible for the payment of his wages under section 3 of the Act, and his address for the service of all notices and processes

is:.....

3. (1) The applicant's wages have not been paid for the following wage-period(s).....(give dates)

Or A sum of Rs..... has been unlawfully deducted from his wages of amount for the wage-period(s) which ended on (give dates)

(2) [Here give any further claim or explanation].

4. The applicant estimates the value of the relief sought by him at the sum of Rs.....

5. The applicant prays that a direction may be issued under sub-section (3) of section 15 for –

(a) Payment of delayed wages as estimated or such greater or lesser amount as the Authority may find to be due.

Or Refund of the amount illegally deducted.

(b) Compensation amounting to

The Applicant certifies that the statement of facts contained in this application is to the best of his knowledge and belief accurate.

Signature or thumb impression of the
employed person, or legal practitioner or official
of a registered trade union duly authorized.

Form B

Form of Group Application

[See sub-section (2) of sections 15 and 16 of Payment of Wages Act]

In the Court of the Authority appointed under the Payment of Wages, Act, 1936 (4 of 1936) for area

application No..... of

Between A.B.C.....

Applicants

A legal practitioner

(through a legal practitioner/an official of which is a registered union).

And X.Y.Z..... Opposite Party.

The applicants state as follows:

1. ¹[The applicants whose names and permanent addresses] appear in the attached schedule are persons employed in the /on the /factory/railway/insustrial establishment entitled and resides at
The address of the applicants for service of all notice and processes is:
.....
2. X.Y.Z. the opposite party, is the person responsible for the payment of wages under section 3 of the Act, and his address for the service of all notices and processes is:
.....
3. The applicants' wages have not been paid for the following wage-period(s):
.....
4. The applicants estimate the value of the relief sought by them at the sum of Rs...
5. The applicants pray that a direction may be issued under sub-section (3) of section 15 for:
 - (a) Payment of the applicants' delayed wages as estimated..... or such greater or lesser amount as the Authority may find to be due.
 - (b) Compensation amounting to.....

The Applicants certify that the statement of facts contained in this application is, to the best of their knowledge and belief, accurate.

Signature of thumb impression of two of the
Applicants, or legal practitioner, or an official of
A registered trade union duly authorized.

¹*SCHEDULE*

S.No.	Name of Applicant	Permanent Address
1	2	3

FORM C

FORM OF APPLICAION BY AN INSPECTOR OR PERSON PERMITTED BY
THE AUTHORITY OR AUTHORISED TO ACT

[See sub-section (2) of sections 15 and 16 of the Payment of Wages Act]

In the Court of Authority appointed under the Payment of Wages Act, for area.
Application No..... of

¹ Subs. By the Payment of Wages (Procedure) (Amendment) Rules, 1960.

Between

A.B.C. [(designation).....an Inspector under the Payment of Wages Act] of a person permitted by the authority/authorized to act under sub-section (2) of Section 15].....applicant.

And

X.Y.Z..... the opposite party.

The applicant states as follows:

1. X.Y.Z., the opposite party is the person responsible under the Act for the payment of wages to the following ¹[persons whose names and permanent addresses are given below]:

(1)

(2)

(3)

*

*

2. His address for the service of all notices and processes is:
3. The wages of the said person(s) due in respect of the following wage-period(s) have not been paid/have been subjected to the following illegal deductions:
4. The applicant estimates the value of the relief sought for the person(s) employed at the sum of Rs.....
5. The applicant prays that a direction may be issued under sub-section (3) of section 15 for:
 - (a) Payment of the delayed wages as estimated or such greater or lesser amount as the Authority may find to be due.
Or Refund of the amount illegally deducted.
 - (b) Compensation amounting to Rs.....

The applicant certifies that the statement of facts contained in this application is, to the best of his knowledge and belief, accurate.

Signature

FORM D

CERTIFICATE OF AUTHORISATION

I/We employed person(s) hereby authorize a legal practitioner/an official of Which is a registered trade union to act on my/our behalf under section 15 and section 17 of the Payment of Wages Act, 1936 (4 of 1936), in respect of the claim against on account of the delay in payment\illegal deductions from my/our wages for.....

¹ Subs. by Payment of Wages (Procedure) Amendment Rules, 1960.

Witnesses	(1)	Signature	(1)
	(2)		(2)
	(3)		(3)
	(4)		(4)
	*		*
	*		*

I accept the authorisation.

Signature
Legal practitioner/
Official of a registered trade union

FORM E NOTICE FOR THE DISPOSAL OF APPLICATION

To

Whereas under the Payment of Wages Act, 1936 (4 of 1936) a claim against you has been presented to me in the application of which a copy is enclosed, you are hereby called upon to appear before me either in person or by any person duly instructed, and able to answer all material questions relating to the application, or who shall be accompanied by some person able to answer all material questions relating to the application, or who shall be accompanied by some person able to answer all such questions, on the day of20.. at o'clock in the forenoon/afternoon to answer the claim; and as the day fixed for your appearance is appointed for the final disposal of the application, you must be prepared to produce on that day all the witnesses upon whose evidence, and the documents upon which you intend to rely in support of your defence.

Take notice that, in default of your appearance on the day before mentioned, the application will be heard and determined in your absence.

Given under my hand and seal, this day of20...

Authority

Seal

FORM F ¹[RECORD OF ORDER OF DIRECTION]

- (1) Serial number.....
- (2) Date of the application.....
- (3) Name or names, parentage, address or addressed of the applicant, or some, or all of the applicants belonging to the same unpaid group:
- (4) Name and address of the employer:
- (5) Amount claimed:
 - (a) as delayed wages: Rs.
 - (b) as deducted from wages: Rs.....

¹ Subs. By the Payment of Wages (Procedure) (Amendment) Rules, 1959.

- (6) Plea of the employer and his examination (if any):
¹[(7) Finding, and a brief statement of the reasons therefore]:
 (8) Amounts awarded:
 (a) delayed wages Rs.....
 (b) deducted wages.....
 (9) Compensation awarded.....
 (10) Penalty imposed.....
 (11) Costs awarded to:
 (a) Court-fee Charges.....
 (b) Pleader's fee.....
 (c) Witnesses' expenses.....
²[(12) Date by which the amounts awarded shall be paid.]

Signed

Dated

Note:- In case where an appeal lies, attach on a separate sheet the substance of the evidence.

FORM G

NOTICE TO RESPONDENT OF THE DAY FIXED FOR THE HEARING OF THE APPEAL UNDER SECTION 17 OF THE PAYMENT OF WAGES ACT, 1936

Appeal from the decision of the Authority for the area
 dated theday of 20..

To

Respondent

Take notice that an appeal of which a copy is enclosed from the decision of the Authority for Area has been presented by X,Y.Z. (and others), and registered in this Court, and that theday of 20.. has been fixed by this court for the hearing of the appeal.

If no appearance is made on your behalf by yourself, or by some one by law authorized to act for you this appeal, it will be heard and decided in your absence.

Given under my hand and the seal of the court, thisday of20..

Seal of the Court

Judge

¹ Subs. By the Payment of Wages (Procedure) (Amendment) Rules, 1959.

² Ins. By Payment of Wage (Procedure) (Amendment) Rules, 1970.